

Wells Fargo Bank N.A. v. Mary R Wells
Case No. CL24-00659

Motion to Set Aside/Vacate Dismissal and Enter Judgment

TENTATIVE RULING:

Plaintiff moves to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Defendant's first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. Defendant has never formally appeared in this action and the stipulation fails to state an appearance. The court has no ability to determine whether the mailed notice was adequate to provide Defendant with due process.

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].)

LEXINGTON INSURANCE COMPANY et al. v. DRESSER-RAND Co. et al.
Case No. CU25-03193

Motion for Leave to File First Amended Complaint.

TENTATIVE RULING:

The unopposed motion for leave to file a first-amended complaint is GRANTED.

The first amended complaint shall be filed and served in 10 court days. Responsive pleadings are due per Code of Civil Procedure.

TOM v. EDINGER
Case No. CU25-06789

Motion for Leave to File First Amended Complaint

TENTATIVE RULING